

		substantial justice. As a result, the Court cannot determine that the California does not lack personal jurisdiction over defendant such that the default judgment is void. To the extent that defendant contends that the default judgment is void because it exceeds the amount of relief sought in the complaint, plaintiff concedes that the complaint only sought damages of \$45,000, but denies that the judgment is void, citing <i>Greenup v. Rodman</i>, 42 Cal. 3d 822, 839 (1986). Plaintiff is correct; the cited case indicates that an amended judgment is the appropriate remedy where the amount of the default judgment exceeds that sought in the complaint. Accordingly, the motion of specially appearing defendant Silvano Breda for an order setting aside the default and default judgment entered against him on the complaint of plaintiff Altinex, Inc., and quashing service of the summons and complaint is DENIED. The Court will, however, reduce the amount of the default judgment entered against defendant to \$45,000 so that it does not exceed the amount of damages sought by the complaint. The Court sustains defendant's objections 1 and 2 to the Gershfeld declaration and objection 8 to the Khiterer declaration and overrules all other objections. Plaintiff to give notice.
7.	<u>30-2023-01363921-CU-WT-CJC</u> Manalese vs. Las Flores Internet, LLC	Before the Court are the following four (4) motions brought by Plaintiff Karlina Manalese ("Plaintiff") against Defendant Las Flores Internet, LLC, dba Strikeworks Solutions ("Defendant"): a Motion to Compel Further Responses to Requests for Production ("MF-RFP"), Set Two, and Sanctions (ROA 224); a Motion to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set Two, and Sanctions (ROA 228); an MF-RFP, Set Three, and Sanctions (ROA 259); and an MF-SROG, Set Three, and Sanctions (ROA 263). The underlying complaint seeks damages for multiple

	claims, including workplace discrimination, harassment, retaliation, sexual battery, wrongful termination, breach of contract, and unfair competition. ROA 15. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Defendant to provide further verified, code compliant responses to Plaintiff's Requests for Production ("RFP"), Set Two, Nos. 73-85, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-RFP, Set Two. ROA 224, pp. 1-2; ROA 218, p.2. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Defendant to provide further verified, code compliant responses to Plaintiff's Special Interrogatories ("SROG"), Set Two, Nos. 28-34, 41, 42, 44, 46-49, 51, and 54-58, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-SROG, Set Two. ROA 228, pp. 1-2. Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Defendant to provide further verified, code compliant responses to Plaintiff's RFP, Set Three, Nos. 85-91, 93, and 98-99, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-SROG, Set Three. ROA 259, pp. 1-2. Finally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Defendant to provide further verified, code compliant responses to Plaintiff's SROG, Set Three, Nos. 61, 69, and 71, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-SROG, Set Two. ROA 255, p.2. In total, Plaintiff seeks \$14,320.00 in monetary discovery sanctions.
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		Defendant requests that the Court deny Plaintiff's MF-RFP, Set Two, and instead award sanctions to Defendant in the amount of \$5,670.00 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 279, p.18. Defendant also requests that the Court deny Plaintiff's MF-SROG, Set Two, and instead award sanctions to Defendant in the amount of \$9,187.50 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 267, p.18. Additionally, Defendant requests that the Court deny Plaintiff's MF-RFP, Set Three, and instead award sanctions to Defendant in the amount of \$5,512.00 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 350, ¶ IV. Finally, Defendant requests that the Court deny Plaintiff's MF-SROG, Set Three, and instead award sanctions to Defendant in the amount of \$3,412.50.00 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 358, ¶ IV. In total, Defendant seeks \$23,782.00 in monetary discovery sanctions. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); see Cal. Civ. Proc. Code § 2023.010(i) (failing to meet and confer or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties' obligation to meet and confer under the California Rules of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§, 2030.090(a), 2030.300(b)(1), 2031.060(a),
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	2031.310(b)(2). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 (“[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion.”), 2030.300(b), 2031.310(b)(2); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) (“in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .”). Defendant argues that Plaintiff has not satisfied the statutory meet and confer requirements. ROA 279, ¶ IIIA; ROA 350, ¶ IIC. Plaintiff’s Set Two Discovery Requests On April 30, 2024, Defendants produced a privilege log. ROA 252, ¶ 7. The Court notes that the privilege log is not on the record. On September 3, 2024, the parties entered a protective order governing the handling of confidential information. ROA 216, ¶ 6. On April 3, 2025, Plaintiff propounded Set Two RFP and SROG upon Defendant. ROA 281, ¶ 9. On May 6, 2025, Defendant served initial responses to Plaintiff’s SROG and RFP, Set Two, by electronic means. ROA 216, ¶10. On May 16, 2025, Plaintiff sent an email to Defendants, accusing Defendants of “playing games” and identifying to which specific Set Two SROGs and RFPs Plaintiff requests supplemental responses. ROA 216, p.63. On May 21, 2025, the parties again corresponded over email regarding Plaintiff’s dissatisfaction with Defendant’s responses to Plaintiff’s Set Two discovery requests. ROA 216, pp. 63-65. Therein, Defendant claimed that Plaintiff’s
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	meet and confer efforts were insufficient and declared that Defendant would not agree to an extension for Plaintiff's deadline to file motions to compel Defendant's further responses. <i>Id.</i> On May 22, 2025, Plaintiff offered to meet and confer by telephone to discuss Plaintiff's issues with Defendant's responses to Plaintiff's Set Two discovery requests. ROA 216, p.73. On May 28, 2025, the parties corresponded again over email. ROA 216, pp. 82-83. Plaintiff again requested an extension of the deadline to file motions to compel further responses so that the parties could conduct an IDC. <i>Id.</i> Defendant reiterated its position that Plaintiff's meet and confer efforts were insufficient because Plaintiff failed to specify how Defendant's responses were not code compliant. <i>Id.</i> On that basis, Defendant maintained it could not provide supplemental responses. <i>Id.</i> On June 13, 2025, Plaintiff again sent an email requesting supplemental responses to Plaintiff's Set Two discovery requests (SROG and RFP). ROA 216, p.88. On June 20, 2025, Plaintiff filed an MF-PROD, Set Two, and an MF-SROG, Set Two. ROA 224, 228. Pursuant to the foregoing, the Court finds that Plaintiff has satisfied the statutory meet and confer requirement for Plaintiff's Set Two discovery requests. Plaintiff's Set Three Discovery Requests On July 9, 2025, Plaintiff propounded RFP and SROG, Set Three, upon Defendant. ROA 356, ¶ 9. On August 12, 2025, Defendant served initial responses to Plaintiff's Set Three discovery demands. ROA 356, ¶ 9. On September 12, 2025, Plaintiff provided Defendants with a letter identifying Defendant's alleged noncompliant responses to Plaintiff's Set Three discovery demands. ROA 252, ¶ 10(a).
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	On September 15, 2025, Defendant agreed to extend Plaintiff's deadline to file a motion to compel further responses to Plaintiff's Set Three discovery demands to October 20, 2025. ROA 252, ¶ 10(b). On September 19, 2025, Defendant responded to Plaintiff's letter. ROA 252, ¶ 10(c). On September 23, 2025, the parties discussed supplemental responses to Plaintiff's Set Three discovery demands via email, and Defendant indicated they would supplement one response. ROA 252, ¶ 10(d). On October 9, 2025, Defendant agreed to extend Plaintiff's deadline to file a motion to compel further responses to Plaintiff's Set Three discovery demands to October 30, 2025. ROA 252, ¶ 10(e). On October 9, 2025, Defendant served supplemental responses to Plaintiff's SROG, Set Three. ROA 356, ¶ 9. On October 26, 2025, the parties corresponded over email regarding Plaintiff's Set Three discovery demands. ROA 252, ¶ 10(f). On October 27, 2025, Defendant indicated that they would not provide further responses to Plaintiff's Set Three discovery requests, but that they would provide responsive documents. ROA 252, ¶ 10(g). On October 29, 2025, Defendant produced responsive documents to Plaintiff's RFP, Set Three. ROA 252, ¶ 10(h). Through email correspondence, Defendant denied Plaintiff's request for an additional extension to the deadline to file motions to compel as to Plaintiff's Set Three discovery, and reiterated that Defendant would not provide additional responses. ROA 252, ¶¶ 10(i)-(j). On October 30, 2025, Plaintiff filed their MF-RFP, Set Three, and MF-SROG, Set Three. ROAs 259, 263. The Court finds that Plaintiff has satisfied the statutory meet and confer requirements with respect to Plaintiff's Set
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		Three discovery motions. Good Cause Showing re: Motions to Compel Further Responses to Request for Production California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to “set forth specific facts showing good cause justifying the discovery sought by the demand.” Cal. Civ. Proc. Code § 2031.310(b)(1). To establish good cause, the moving party must satisfy the following requirements set out by the Second District Court of Appeal in <i>Williams v. Superior Court</i>: first, they “must identify a disputed fact that is of consequence in the action[;]” second, they must explain how “the discovery sought will [either] tend in reason to prove or disprove that fact[;]” or will “lead to other evidence that will tend to prove or disprove the fact.” <i>Williams v. Super. Ct.</i>, 187 Cal. Rptr. 3d 321, 325 (2015) (previously published at 236 Cal. App. 4th 1151); see <i>Calcor Space Facility, Inc. v. Super. Ct.</i>, 53 Cal. App. 4th 216, 224 (1997) (vacating an order compelling production where the moving party failed to present “specific facts relating to each category of materials sought to be produced;” offered “mere generalities” as justification for the production; and did not provide “focused, fact-specific justifications for [their] demands.”). a. Plaintiff’s RFP, Set Two, No. 73 Plaintiff’s RFP, Set Two, No. 73 seeks “[a]ll COMMUNICATIONS between Plaintiff and Drew Woodruff.” ROA 218, p.2. As justification for a further response, Plaintiff contends that the parties disagree as to whether Plaintiff was terminated as a result of Defendant’s financial constraints. ROA 218, p.2, ll. 17-19. Plaintiff further argues that the production of communications between Plaintiff and Defendant’s Person Most Knowledgeable (“PMK”), Drew Woodruff, is likely to lead to “underlying supportive documents including bank statements to support its position . . . as well as underlying records used to create the profit and loss statement . . .” <i>Id.</i>
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	The Court fails to decipher how communications between the Defendant's PMK and Plaintiff would reasonably lead to the discovery of the types of supporting materials sought in justification for this request. Thus, the Court finds that Plaintiff has <i>not</i> shown good cause for Defendant's further response to Plaintiff's RFP, Set Two, No. 73. Plaintiff's RFP, Set Two, No. 74, 82-84 Plaintiff offers the same justification for a further response to RFP, Set Two, Nos. 74, and 82-84, as that set forth for RFP Set Two, No. 73, above. ROA 218. Thus, the Court finds that Plaintiff's justification in these instances does <i>not</i> present good cause for Defendant's further response to Plaintiff's RFP, Set Two, Nos. 74 and 82-84. Plaintiff's RFP, Set Two, Nos. 75-81, and 85 Plaintiff offers the same justification for a further response to that set forth for RFP Set Two, No. 73, above. ROA 218. The Court finds that, as to these requests, Plaintiff's justification <i>does</i> show good cause for Defendant's further response to Plaintiff's RFP, Set Two, Nos. 75-81, and 85. Plaintiff's RFP, Set Three, No. 85 Plaintiff's RFP, Set Three, No. 85 requests "[a]ll DOCUMENTS identified by YOU [<i>sic</i>] Special Interrogatory Set 3 Responses." ROA 250, p.2. As good cause to compel production, Plaintiff argues that "Defendant has placed its financial condition at issue" and that "[t]he workers [<i>sic</i>] compensation investigative file is not subject to any privilege." <i>Id.</i> Plaintiff fails to articulate how the requested discovery will lead, in reason, to prove or disprove Defendant's financial condition. Additionally, it is not clear precisely what Plaintiff's request encompasses. Consequently, Plaintiff fails to make a good cause showing to compel a further response to Plaintiff's RFP, Set Three, No. 85. Plaintiff's RFP, Set Three, No. 86
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		Plaintiff's RFP, Set Three, No. 86 demands "[a]ll COMMUNICATIONS between Victor Villanueva and Andrew Quillares from May 2, 2023, to present." ROA 250, p.4. As good cause justifying an order to compel a further response, Plaintiff argues that "[g]ood cause exists because documents of the kind do exist" and that the parties disagree as to whether the communications in fact exist. ROA 250, p.6. Plaintiff fails, however, to articulate why the existence of these communications is a fact of consequence to the underlying dispute. Consequently, Plaintiff has <i>not</i> shown good cause to compel a further response to Plaintiff's RFP, Set Three, No. 86. Plaintiff's RFP, Set Three, Nos. 87-91, 93, and 99 For Plaintiff's RFP, Set Three Nos. 87-91, 93, and 99, the Court finds that Plaintiff's separate statement fails to identify a disputed fact of consequence that the requests would, in reasons, tend to prove or disprove. Consequently, Plaintiff has not satisfied the good cause showing required to compel a further response to Plaintiff's RFP, Set Three, Nos. 87-91, 93, and 99. Plaintiff's RFP, Set Three, No. 98 Plaintiff's RFP, Set Three, No. 98, requests that Defendant produce Defendant's "bank statements from March 2023 to July 2023." ROA 250, p.13. As justification for good cause to compel a further response, Plaintiff argues that Defendant's financial condition is a disputed fact in consequence with respect to Plaintiff's claims for disability discrimination, and that the discovery sought would tend to prove whether Defendant's financial condition is a justified rationale for terminating the Plaintiff. ROA 250, p.14. Thus, Plaintiff <i>has</i> shown good cause to compel Defendant's further response to Plaintiff's RFP, Set Three, No. 98. Code Compliant Responses to Requests for Production Responses to requests for production must take the form of either (i) an agreement to comply, (ii) a representation of
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	inability to comply, or (iii) objections. Cal. Civ. Proc Code § 2031.210(a). An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that "the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a).
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		Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges Benchbook: Civil Proceedings-Discovery § 5.5. “The objection of [undue] burden is valid only when that burden is <i>demonstrated</i> to result in injustice. <i>West Pico Furniture Co. v. Super. Ct.</i>, 56 Cal. 2d 407, 418 (1961) (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” <i>Mead Reinsurance Co. v. Super. Ct.</i>, 188 Cal. App. 3d 313, 321 (1986) (quoting <i>West Pico</i>, <i>supra</i>, 56 Cal. 2d at 417). A discovery request may be deemed overly broad if it imposes an undue burden, seeks irrelevant information, or constitutes a serious intrusion into protected privacy interests. Cal. Judges' Benchbook Civ. Proc. Discovery § 5.5; <i>Lopez v. Watchtower Bible & Tract Soc’y of N.Y., Inc.</i>, 246 Cal. App. 4th 566, 578-79 (2016) (rejecting a responding party's overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). To sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” <i>Pacific Tel. & Tel. Co. v. Super. Ct.</i>, 2 Cal. 3d 161, 173 (1970). “For discovery purposes, information is relevant if it might reasonably assist a party in <i>evaluating</i> the case, <i>preparing</i> for trial, or <i>facilitating</i> settlement.” <i>Gonzalez v. Super. Ct.</i>, 33 Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.); <i>Pacific Tel.</i>, <i>supra</i>, 2 Cal. 3d at 173. “Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence.” <i>Lopez</i>, <i>supra</i>, 246 Cal. App. 4th at 591. “[D]oubts
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		as to relevance should generally be resolved in favor of permitting discovery.” <i>Pacific Tel.</i>, <i>supra</i>, 2 Cal. App. 3d at 173. The California Constitution expressly protects an individual’s right to privacy. Cal. Const., art. I, § 1. “Where ‘a discovery request seeks information implicating the constitutional right of privacy’ the party seeking discovery must make a showing of need greater than that needed for discovery requests generally.” <i>Cnty. of L.A. v. Super. Ct.</i>, 65 Cal. App. 5th 621, 629 (2021) (<i>quoting Williams, supra</i>, 3 Cal. 5th at 556). When considering these factors, courts apply a balancing test: the <i>opposing party</i> must demonstrate a protected privacy interest, a reasonable expectation of privacy, and a serious intrusion. <i>Hill v. Nat’l Collegiate Athletic Ass’n</i>, 7 Cal. 4th 1, 35-39 (1994); <i>Williams, supra</i>, 3 Cal. 5th at 552-60. The burden then shifts to the propounding party to show legitimate countervailing interests. <i>Williams, supra</i>, 3 Cal. 5th at 552. Courts balance those interests and may impose protective measures. <i>Id.</i> Where there is no serious invasion of a privacy interest, a Court is not required to balance the privacy interests of the objectors or objecting party against the discovery interests of the propounding party. <i>Alch v. Super. Ct.</i>, 165 Cal. App. 4th 1412, 1427 (2008) (<i>citing Pioneer Electronics (USA), Inc. v. Super. Ct.</i>, 40 Cal. 4th 360, 371 (2007)). Additionally, “[I]f the intrusion is limited[,] and confidential information is carefully shielded from disclosure except for those who have a legitimate need to know, privacy concerns are assuaged.” <i>Pioneer, supra</i>, 40 Cal. 4th at 371. The Supreme Court of California has recognized that “the right of privacy extends to one’s confidential financial affairs.” <i>Valley Bank of Nev. v. Super. Ct.</i>, 15 Cal. 3d 652, 656 (1975). However, an important qualification to <i>Valley Bank</i> is that it more accurately stands for the proposition that a person has a reasonable expectation that a <i>financial institution</i> with whom a party shares a confidential
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	relationship will not divulge that person's confidential information absent <i>compulsion by legal process</i>. <i>Id.</i> at 657. Thus, a person does not have a reasonable expectation of privacy in their financial affairs in all circumstances. <i>Garrabrants v. Erhart</i>, 98 Cal. App. 5th 486, 500 (2023). Discovery of confidential financial information is permitted if the information is relevant to the subject matter at issue. <i>Dompeling v. Super. Ct.</i>, 117 Cal. App. 3d 798, 808 (1981). Courts consider the following factors when an objection is made to the discovery of sensitive financial information: (i) the purpose for which the information is sought; (ii) the potential ramifications of disclosure on the parties and on trial; (iii) the nature of the opposing party's objections; (iv) whether the court can issue an order that promotes partial disclosure, another form of disclosure, or can fashion certain safeguards that permit disclosure only after the requesting party has met certain criteria that are just under the circumstances. <i>Greyhound Corp. v. Super. Ct.</i>, 56 Cal 2d 355, 382-83. Although corporations have a lesser right to privacy than human beings and are not entitled to claim a fundamental right to privacy, some right to privacy exists." <i>Ameri-Medical Corp. v. Workers' Comp. Appeals Bd.</i>, 42 Cal. App. 4th 1260, 1287-1288 (1996). To resolve an objection related to corporate privacy, "the discovery's relevance to the subject matter of the pending dispute and whether the discovery 'appears reasonably calculated to lead to the discovery of admissible evidence'" is balanced against the corporate right of privacy. <i>SCC Acquisitions, Inc. v. Super. Ct.</i>, 243 Cal. App. 4th 741, 756 (2015) (citing <i>Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.</i>, 137 Cal. App. 4th 579, 595 (2006)). "Doubts about relevance generally are resolved in favor of permitting discovery." <i>SCC Acquisitions, supra</i>, 243 Cal. App. 4th at 756. Tax returns are subject to robust statutory protections. 26 U.S.C. § 6103; Cal. Rev. & Tax Code § 7056; <i>see generally Webb v. Standard Oil Co.</i>, 49 Cal. 2d 509, 512-513 (1957). Exceptions arise where: "(1) the circumstances indicate an intentional waiver of the privilege; (2) the gravamen of the
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	lawsuit is inconsistent with the privilege; or (3) a public policy greater than that of the confidentiality of tax returns is involved.” <i>Weingarten v. Super. Ct.</i>, 102 Cal. App. 4th 268, 274 (2002) (citing <i>Schnable v. Super. Ct.</i>, 5 Cal. 4th 704, 721 (1993)). <i>Brown v. Superior Court</i> extended the privilege to W-2s and other forms that “constitute an integral part of the return and qualify as ‘information contained in the returns.’” <i>Brown v. Super. Ct.</i>, 71 Cal. App. 3d 141, 143-144 (1977). As a result, the Court applies the analytical framework for disclosure of a party’s tax returns equally to forms and documents that directly inform the contents of the tax returns themselves. Relatedly, in a non-contract action where a plaintiff seeks punitive damages arising from the defendant’s oppression, fraud, or malice, California Civil Code Section 3295 provides that the court “may, for good cause, grant a defendant a protective order requiring the plaintiff to produce evidence of a prima facie case of liability for damages . . . prior to the introduction of evidence of [t]he financial condition of the defendant.” Cal. Civ. Code § 3295(a)(2); see also Cal. Civ. Code § 3294(a). “No pretrial discovery by the plaintiff shall be permitted with respect to [the financial condition of the defendant]” absent a court order. Cal. Civ. Code § 3295(c). The protection is not absolute, and courts may consider all relevant factors in fashioning a disclosure remedy that balances protected privacy interests with the public interest in dispute resolution. See <i>Cobb v. Super. Ct.</i>, 99 Cal. App. 3d 543, 550-551 (1979). Pursuant to California Code of Civil Procedure Section 2031.240(c), “[i]f an objection is based on a claim of privilege . . . the response <i>shall</i> provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” Cal. Civ. Proc. Code § 2031.240(c) (emphasis added). “The purpose of a ‘privilege log’ is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production.”
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		<i>Hernandez v. Super. Ct.</i>, 112 Cal. App. 4th 285, 292 (2003). Critically, specific factual descriptions of documents permit a judicial evaluation of a claim of privilege. <i>Id.</i> It is the initial burden of the party asserting the privilege to demonstrate that the communication falls within the privilege. <i>Wellpoint Health Networks, Inc. v. Super. Ct.</i>, 59 Cal. App. 4th 110, 123 (1997). Boilerplate privilege objections, when timely served, are sufficient to preserve them despite their other substantive flaws. <i>See Catalina Island Yacht Club v. Super. Ct.</i>, 242 Cal. App. 4th 1116, 1129 (2015). Accordingly, if a party responding to an inspection demand <i>timely</i> serves a response asserting an objection based on privilege, the trial court lacks authority to order the objection waived even if the responding party fails to serve a privilege log, serves an untimely privilege log, or serves a privilege log that fails either to adequately identify the documents to which the objection purportedly applies or provide sufficient factual information for the propounding party to evaluate the objection. <i>People ex rel. Lockyer v. Super. Ct.</i>, 122 Cal. App. 4th 1060, 1074-75 (2004) (finding “[b]ecause the [responding parties] timely objected on the grounds of privilege, they preserved these objections, regardless of whether the objections were sufficiently detailed in their response or privilege log and the court, as a matter of law, could not find that they had waived these privileges”). The appropriate remedy if the response or a privilege log fails to provide sufficient information to allow the court to rule on the merits is to order the responding party to serve a privilege log and impose sanctions for the deficient response. <i>Catalina Island Yacht Club, supra</i> at 1127; <i>see also</i> Cal. Civ. Proc. Code § 2031.310(h). Objections on the grounds that a request seeks confidential commercial information are not valid, nor is proprietary information protected on privacy grounds. <i>Nativi v. Deutsche Bank Nat’l Tr. Co.</i> 223 Cal. App. 4th 261, 313-14 (2014). However, California Code of Civil Procedure Section 2031.060 permits courts to direct that “a trade secret or other confidential . . . commercial information not be
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		disclosed, or be disclosed only to specified persons or in a specified way” upon a party's motion accompanied by a meet and confer declaration, and a showing of good cause. Cal. Civ. Proc. Code § 2031.060(a), (b)(5). a. Plaintiff’s RFP, Set Two, Nos. 75-77 Defendant’s response to Plaintiff’s RFP, Set Two, Nos. 75-77, provides a hybrid response that objects on the grounds that “‘backup information’ is not defined, and is vague and ambiguous.” ROA 281, pp. 10, 14. The Court finds that the term “backup information” is too vague and ambiguous to facilitate an intelligent response. Defendant’s objection is SUSTAINED. Plaintiff’s RFP, Set Two, Nos 78, 79 Defendant provides blanket objections to Plaintiff’s RFP, Set Two, Nos. 78 and 79, on the following grounds: that they seek information that is neither relevant nor likely to lead to the discovery of admissible evidence; that they are overbroad in time and scope and therefore unduly burdensome; that they presents a serious invasion of Defendant’s protected privacy interest in their confidential financial affairs; and that they are barred by operation of California Civil Code Section 3295(c). ROA 218, pp. 10-11. Defendant fails to show how Plaintiff’s inquiries could not reasonably lead to the discovery of admissible evidence or be helpful in preparation for trial. Defendant’s irrelevance objections are therefore OVERRULED. Defendant does not demonstrate how responding to the demands would result in an injustice to Defendant and fails to show how the trouble or expense required of a response would be incommensurate with the result sought. Defendant’s undue burden objections are therefore OVERRULED. Defendant also fails to demonstrate a reasonable expectation of privacy given the demand’s relevance to the subject matter in litigation. Defendant also fails to demonstrate a serious intrusion into Defendant’s protected privacy interest in Defendant’s confidential financial affairs,
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	particularly given the existence of the stipulated protective order. Defendant's objections on privacy grounds are therefore OVERRULED. Defendant's objections on California Civil Code Section 3295 grounds are well taken. However, the Court finds that because Defendant has placed its financial condition directly at issue in its Answer to Plaintiff's Second Amended Complaint (ROA 174, ¶ 30), disclosure is both relevant and necessary to promote the ultimate resolution of the dispute. However, because Plaintiff seeks punitive damages (<i>see</i> ROA 157, p.25, ¶ 6), any disclosure of the information requested in Plaintiff's RFP, Set Three, Nos. 78 and 79 shall be limited to attorneys' eyes only, used solely for purposes of this litigation, and destroyed upon resolution of the underlying dispute. Pursuant to the foregoing, Defendant's objection on Section 3295(c) grounds is OVERRULED. Consequently, Defendant must provide a further verified, code compliant response to plaintiff's RFP, Set Two, Nos. 78 and 79. Plaintiff's RFP, Set Two, Nos. 80, 81, and 85 Defendant provides blanket objections to Plaintiff's RFP, Set Two, Nos. 80, 81, and 85, on the grounds that they present a serious invasion of Defendant's protected privacy interest in their confidential financial affairs. ROA 218, pp. 11-12. The Court finds that Plaintiff has not demonstrated that Defendant has waived their privilege to withhold tax returns and tax-related forms, or that the gravamen of the lawsuit or public policy interest outweighs Defendant's protected interest in the confidentiality of their tax documents. Consequently, Defendant's objections to Plaintiff's RFP, Set Two, Nos. 80, 81, and 85, on tax return privacy grounds, are SUSTAINED. Plaintiff's RFP, Set Three, No. 98 Plaintiff's RFP, Set Three, No. 98 requests that Defendant produce "YOUR bank statements from March 2023 to July
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2023.” ROA 250, p.13.

Defendant provides a hybrid response that objects on the following grounds: that it is overbroad in time and scope and thus presents an undue burden; that it seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that it is prohibited by California Civil Code Section 3295(c); that it presents a serious intrusion into Defendant’s right of privacy to confidential financial affairs; and that it “calls for information protected by any privilege;” and that is involves the disclosure of confidential, proprietary information. ROA 250, p.13.

The Court incorporates the discussion regarding Plaintiff’s RFP, Set Two, Nos. 78 and 79, here for brevity.

In light of the foregoing, Defendant’s objections on the grounds of irrelevance, undue burden, operation of California Civil Code Section 3295(c), and privacy are all **OVERRULED**.

Additionally, Defendant’s objection on sensitive, proprietary, or confidential commercial information grounds fails to articulate what trade secret or proprietary information would be subject to the risk of disclosure by the request. Additionally, the parties have entered into a stipulated protective order to mitigate any potential risks associated with the disclosure. Consequently, Defendant’s objection is **OVERRULED**.

Lastly, Defendant’s objection on the grounds that Plaintiff’s request seeks “information protected by *any* privilege” is woefully inadequate. ROA 250, p.13 (emphasis added). It neither specifically identifies *any* particular privilege that applies nor articulates how. It scarcely even qualifies as boilerplate and serves only to delay the discovery process. It is therefore **OVERRULED**.

Defendant’s response provides that “[a]ll documents in the demanded category between March 2023 and June 2023 in RESPONDING PARTY’S possession, custody, or control will be produced.” ROA 250, p.13.

		The Court finds that Defendant’s response is not code compliant because it fails to specify a date when the responsive documents will be produced. Consequently, Defendant must provide a further verified, code compliant response, without objections, to Plaintiff’s RFP, Set Three, No. 98. Code Compliant Responses to Special Interrogatories A party’s response to interrogatories must consist of either: (i) an answer, (ii) an objection, or (iii) the exercise of the party’s option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a). The responding party has a duty to answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 783 (1978). Answers must be fully responsive and may not reference other documents in lieu of a response. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783-84 (finding “it is not proper to answer by stating ‘See my Deposition’, or ‘See my pleading . . .’”). If a response requires reference to another document, said document should be summarized and included in a comprehensive response. <i>Id.</i> Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete response, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); see <i>Regency Health Services, Inc. v. Super. Ct.</i>, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption from the general duty to conduct a reasonable investigation to obtain responsive information to discovery requests). This duty encompasses the responding party’s responsibility to provide information available from sources under their control, such as the party’s lawyer, agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Castaline v.</i>
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		<i>City of L.A.</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that “[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete response after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, responses must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating “[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories.”). If an interrogatory requires an abstract, an audit, or a summary of information contained in records under the responding party’s control, the responding party may elect to permit the inspection and copying of the records in lieu of a response if the burden and expense of doing so would be substantially the same for both parties. Cal. Civ. Proc. Code 2030.230. Selecting this option is tantamount to verifying that the required records actually exist and contain the necessary information to answer the interrogatory. <i>Deyo, supra</i>, 84 Cal. App. 3d at 784 (<i>citing Kaiser Found. Hospitals v. Super. Ct. for L.A. Cnty.</i>, 275 Cal. App. 2d 801, 805 (1969). The Court’s discussion above regarding code compliant objections to requests for production is equally applicable to interrogatories and is incorporated herein. <i>See supra</i>. a. Plaintiff’s SROG, Set Two, Nos. 28-33, 42, 44, 47, 48, 54-58 Defendant responds with blanket objections on the following grounds: that the request seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that the request is overbroad in time and scope and thus presents an undue burden; and that the request infringes upon Mr. Villanueva’s right to privacy in
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	his confidential financial affairs. ROA 214, pp. 2, 7-12, 14-16. The Court incorporates the discussion regarding Plaintiff's RFP, Set Two, Nos. 78, and 79, here for brevity. In light of the foregoing, Defendant's objections to Plaintiff's SROG, Set Two, Nos. 28-33, 42, 44, 47, 48, 54-58 on the grounds of irrelevance, undue burden, and privacy are all OVERRULED. Consequently, Defendant must therefore provide a verified, code compliant response to Plaintiff's SROG, Set Two, Nos. 28-33, 42, 44, 47, 48, 54-58, without objections. Plaintiff's SROG, Set Two, No. 34 Plaintiff's SROG, Set Two, No. 34, asks Defendant to "IDENTIFY all DOCUMENTS that show what YOU paid Victor Villanueva in 2021 including all draws, payroll, payments, expense reimbursements including for vehicles, gas, cell phones, W2, W4 or 1099 payments." ROA 214, p.9 Defendant responds with a hybrid response that contains objections on the following grounds: that the request seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that the request is overbroad in time and scope and thus presents an undue burden; and that the request infringes upon Mr. Villanueva's right to privacy in his confidential financial affairs. ROA 214, pp. 9-10. The Court incorporates the discussion regarding Plaintiff's RFP, Set Two, No. 79, here for brevity. In light of the foregoing, Defendant's objections on the grounds of irrelevance, undue burden, and privacy are all OVERRULED. Defendant's answer provides "RESPONDING PARTY responds as follows: Mr Villanueva's W-2; Quickbooks reports." Although all Defendant's objections to the response are overruled, the Court finds that Defendant's answer is code
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	compliant. Consequently, Plaintiff is not entitled to a further response to Plaintiff's SROG, Set Two, No. 34. Plaintiff's SROG, Set Two, No. 41 Plaintiff's SROG, Set Two, No. 41, requests that Defendant "IDENTIFY every ENTITY who is presently a member of AI LLC." ROA 214, p.10. Defendant objects to the interrogatory on the grounds that the term AI LLC is undefined and therefore precludes an intelligent reply, and that it seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence. ROA 214, p.10. Defendant's objections are conclusory and not supported by any facts. They are therefore OVERRULED. Consequently, Defendant must provide a code compliant response to Plaintiff's SROG, Set Two, No. 41, without objections. Plaintiff's SROG, Set Two, No. 46 Plaintiff's SROG, Set Two, No. 46, asks Defendant to "IDENTIFY all books and records of LFI." ROA 214 p.11. Defendant responds with blanket objections on the following grounds: that Plaintiff's reference to "books and records" is undefined and is therefore vague and ambiguous. ROA 214, pp. 11-12. The Court finds that Plaintiff's request is sufficiently ambiguous to preclude an intelligent response. Accordingly, Defendant's objection to Plaintiff's SROG, Set Two, No. 46, on the grounds of vagueness and ambiguity, is SUSTAINED. Plaintiff's SROG, Set Two, Nos. 49 and 51 Defendant responses consist of blanket objections on the grounds that the requests seek information that is neither relevant nor likely to lead to the discovery of admissible evidence, and that the requests are overbroad in time and scope and thus present an undue burden. ROA 214, p.13. The Court incorporates the discussion regarding Plaintiff's
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	RFP, Set Two, No. 79, as to objections on the grounds of ambiguity and undue burden, here for brevity. Accordingly, Defendant's objections are both OVERRULED. Consequently, Defendant must provide a verified, code compliant response to Plaintiff's SROG, Set Two, Nos. 49 and 51, without objections. Plaintiff's SROG, Set Three, No. 61 Plaintiff's SROG, Set Three, No. 61, asks that Defendant "IDENTIFY all DOCUMENTS that YOU received RELATING TO Karlina Manalese's workers' compensation claim." ROA 255, p.2. Defendant provides a hybrid response that objects on the grounds that, because the request "seeks a compilation, summary, or analysis of documents or information," it presents an undue burden. The Court finds that Defendant likely confused the interrogatory with a demand for production and has not demonstrated that the simple task of identifying documents would be incommensurate with the result sought. It is therefore OVERRULED. Defendant provided the following answer: "RESPONDING PARTY refers PROPOUNDING PARTY to the Privilege Log served on April 30, 2024, and the documents produced with [B]ates numbers Strikewords_000496 – Strikewords_000571." ROA 255, p.2. For the reasons detailed above, the Court finds Defendant's answer is not compliant. <i>See supra</i>. Accordingly, Defendant must provide a verified, code compliant response to Plaintiff's SROG, Set Three, No. 61, without objections. Plaintiff's SROG, Set Three, No. 69 Plaintiff's SROG, Set Three, No. 69, requests that Defendant "IDENTIFY all individuals YOU terminated due to loss of YOUR contract with Glenaire." ROA 244, p.4. Defendant provides a hybrid response that raises the following objections: that it presents an undue burden; that "it calls for information protected by any privilege or
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	protection”; that it involves the disclosure of sensitive proprietary information or documents subject to confidentiality or nondisclosure; and that it implicates the privacy rights of third parties. ROA 255, pp. 4-5. Defendant does not demonstrate how responding to the demands would result in an injustice to Defendant and fails to show how the trouble or expense required of a response would be incommensurate with the result sought. Defendant’s undue burden objections are therefore OVERRULED. Defendant’s objection on the grounds that Plaintiff’s request seeks “information protected by <i>any</i> privilege” is woefully inadequate. ROA 255, p.4-5 (emphasis added). It neither specifically identifies <i>any</i> particular privilege that applies nor articulates how. It scarcely even qualifies as boilerplate and serves only to delay the discovery process. It is therefore OVERRULED. Defendant also fails to demonstrate a serious intrusion into a third party’s protected privacy interest. Defendant’s objections on privacy grounds are therefore OVERRULED. Finally, Defendant’s objection on sensitive, proprietary, or confidential commercial information grounds fails to articulate what trade secret or proprietary information would be subject to the risk of disclosure by the request. Additionally, the parties have entered into a stipulated protective order to mitigate any potential risks associated with the disclosure. Consequently, Defendant’s objection is OVERRULED. Defendant’s answer to Plaintiff’s SROG, Set Three, No. 69, provides one name and provides that “[d]iscovery is ongoing and RESPONDING PARTY reserves the right to amend this response at a later time.” ROA 255, p.5. The Court finds Defendant’s answer indicates that Defendant was unable to provide a complete response at the time it was offered. Accordingly, Defendant’s response lacks the required explanation of why the information required for a complete response is unavailable and the
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	efforts Defendant has made to obtain it. Consequently, the Court finds that Defendant’s response to Plaintiff’s SROG, Set Three, No. 69, is not code compliant. Defendant must provide a complete response, without objections, that elaborates upon why the information necessary for a complete response is unavailable and details the efforts Defendant has made to obtain it. Plaintiff’s SROG, Set Three, No. 77 Plaintiff’s SROG, Set Three, No. 77 requests that Defendant “[s]tate the pay (regardless of W2 or 1099 or owner draw) of every employee at Strikeworks from March 2023 to July 2023, including Victor Villanueva and Michael Campbell.” ROA 255, p.5. Defendant provides a hybrid response that raises the following objections: that it presents an undue burden; that “it calls for information protected by any privilege or protection”; that it involves the disclosure of sensitive proprietary information or documents subject to confidentiality or nondisclosure; and that it implicates the privacy rights of third parties and is barred by operation of California Code of Civil Procedure Section 3295(c); that it seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that it invades Defendant’s privacy with respect to its confidential financial affairs. ROA 255, pp. 6. Defendant’s multiple conclusory objections on the grounds of undue burden, irrelevance, privacy interests in confidential financial affairs, third party privacy interests, operation of California Civil Code Section 3295(c), and disclosure of sensitive proprietary information are OVERRULED for the reasons outlined in the Court’s previous discussions. <i>See supra</i>. Additionally, Defendant’s objection on the grounds that Plaintiff’s request seeks “information protected by <i>any</i> privilege” is woefully inadequate. ROA 255, p.6 (emphasis added). It neither specifically identifies <i>any</i> particular privilege that applies nor articulates how. It scarcely even qualifies as boilerplate and serves only to delay the
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	discovery process. It is therefore OVERRULED. Defendant’s response to Plaintiff’s SROG, Set Three, No. 77, provides “RESPONDING PARTY refers PROPOUNDING PARTY to the documents produced at Bates numbers Strikeworks_0000734 – Strikeworks_0000760” and that “[d]iscovery is ongoing and RESPONDING PARTY reserves the right to amend this response.” ROA 255, p.6. The Court finds Defendant’s answer indicates that Defendant was unable to provide a complete response at the time it was offered. Accordingly, Defendant’s response lacks the required accounting of why the information required for a complete response is unavailable and the efforts Defendant has made to obtain it. <i>See</i> ROA 255, p.6. Consequently, Defendant must provide a verified, code compliant response to Plaintiff’s SROG, Set Three, No. 77, without objections, that details the efforts made to obtain the information required for a complete response. Sanctions re: Motions to Compel Further Responses to Discovery Requests [C]ourts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d), 2033.290(d). “‘Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in
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		both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds that Defendant offers no substantial justification for failing to provide code compliant responses to Plaintiff’s discovery demands as outlined above. Additionally, the Court finds no reason why the imposition of sanctions upon Defendant for unsuccessfully opposing Plaintiff’s motions would work an injustice. Consequently, the imposition of sanctions upon Defendant for unsuccessfully opposing these motions is appropriate. However, the Court finds significant mitigating factors in Plaintiff’s failure to provide good cause to compel Defendant’s further response to multiple requests for production; Plaintiff’s insistence, despite valid objections, that Defendant provide further responses to a number of requests; and Plaintiff’s insistence, despite valid responses, that Defendant provide further responses to a number of requests. Assigning Liability for Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); e.g., <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986).
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	Here, Defendant’s failure to provide code compliant responses to the discovery requests detailed above is not attributable to client misconduct. Thus, sanctions are appropriate against Defendant’s counsel, Yoffe & Cooper, LLP, only. Additionally, Plaintiff’s failure to show good cause, persistence in pursuing responses despite valid objections, and insistence on further responses where initial responses were compliant is not attributable to client misconduct. Thus, sanctions are appropriate against Plaintiff’s counsel, Jessica Gomez, only. Determining Reasonable Monetary Sanctions Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by “a declaration setting forth facts supporting the amount of any monetary sanction sought.” Cal. Civ. Proc. Code § 2023.040. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are <i>not</i> compensable as discovery sanctions.” <i>Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Here, having weighed these principles, having considered both Parties’ counsel’s calculation of the reasonable expenses incurred as a result of bringing these motions, and
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		taking into consideration both parties' discovery misuse, the Court finds that Plaintiff is entitled to a reasonable sanctions amount of \$7,471.30, which fairly accounts for the number of individual disputed requests on which Defendants prevailed. Ruling Accordingly, the Court makes the following orders: The Court GRANTS IN PART Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Two (ROA 224) and ORDERS Defendant to serve further verified, code compliant responses, without objections, and responsive documents, to Plaintiff's Requests for Production, Set Two, Nos. 78 and 79, no later than ten (10) days after receiving notice of this Order. The Court GRANTS IN PART Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three (ROA 259) and ORDERS Defendant to serve further verified, code compliant responses, without objections, and responsive documents, to Plaintiff's Requests for Production, Set Three, No. 98, no later than ten (10) days after receiving notice of this Order. The Court GRANTS IN PART Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two (ROA 228) and ORDERS Defendant to serve further verified, code compliant responses, without objections, to Plaintiff's Special Interrogatories, Set Two, Nos. 28-33, 41 42, 44, 47-49, 51, and 54-58, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Three (ROA 263) and ORDERS Defendant to serve further verified, code compliant responses, without objections, to Plaintiff's Special Interrogatories, Set Three, Nos. 61, 69, and 77, no later than ten (10) days after receiving notice of this Order. Lastly, the Court IMPOSES monetary discovery sanctions in the total collective amount of \$7,471.30 upon counsel for Defendant, Yoffe & Cooper, LLP, due and payable to
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		counsel for Plaintiff, Jessica Gomez, no later than thirty (30) days after receiving notice of this Order. Plaintiff shall give notice.
8.	<u>30-2024-01444459-CU-WT-NJC</u> Park vs. Optimum Professional Property Management, Inc.	Before the Court are the following five (5) motions: a Motion to Compel Further Responses to Form Interrogatories (“MF-FROG”), Set One, and Sanctions, brought by Plaintiff Frank Park (“Plaintiff”) against Defendant Optimum Professional Property Management, Inc. (“Optimum”); a Motion to Compel Further Responses to Requests for Production (“MF-PROD”), Set One, and Sanctions; brought by Plaintiff against Optimum; a Motion to Compel Initial Responses to Form Interrogatories (“MI-FROG”), Set One, and Sanctions, brought by Plaintiff against Defendant ADP TotalSource, Inc. (“ADP”); a Motion to Compel Initial Responses to Requests for Production (“MI-PROD”), Set One, and Sanctions, brought by Plaintiff against ADP; and a Motion for Relief from Waiver of Discovery Objections brought by ADP. ROAs 50, 59, 95, 100, 161. The underlying controversy involves claims of disability discrimination and wrongful termination. ROA 2. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Optimum to provide further responses to Plaintiff’s General Form Interrogatories (“FROG”), Set One, Nos. 1.1 and 12.1; and Plaintiff’s Employment Law Form Interrogatories (“E-FROG”), Set One, Nos. 200.3, 201.1, 201.3, 201.6, 201.7, 206.3, 207.2, 209.2, 211.1, and 216.1. ROA 50, p.2; ROA 148; ROA 190, p.2. Plaintiff also seeks the imposition of monetary discovery sanctions upon Optimum in the amount of \$19,280.00 for the costs associated with bringing his MF-FROG. ROA 50, p.2.